

09:00 AM

24-CIV-05635 MONICA D. COOPER VS. THANH K. CHUNG, ET AL.
LINE 4

MONICA D. COOPER
THANH K. CHUNG

ERIC L. TOSCANO
MATTHEW G. SALAZAR

DEFENDANT/CROSS-COMPLAINANT: BELONG HOME, INC'S TO COMPEL AN
INDEPENDENT MENTAL EXAMINATION OF PLAINTIFF MONICA COOPER

TENTATIVE RULING:

Defendant Beling Home, Inc.'s Motion to Compel Independent Medical Examination ("IME") of Plaintiff Monica Cooper is GRANTED, as follows:

Discovery by mental examination is permitted when "the mental or physical condition . . . of that party or other person is in controversy in the action." (Code Civ. Proc. section 2032.020 subd. (a).) The same subsection requires that "[t]he court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown." (*Id.*) The motion must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty" of the examiner. (Code Civ. Proc. section 2032.310.)

The Motion specifies that the examination is to be conducted by Dr. John M. Greene M.D. ("Dr. Greene") at his offices located at 634 North Santa Cruz Avenue, Suite 210, Los Gatos, California 95030. (Motion, at p. 2:1-3.) It further specifies Dr. Greene's specialty in psychiatry and describes that he will administer tests including the Minnesota Multiphasic Personality Inventory – 3 ("MMPI-3"), the Millon Clinical Multiaxial Inventory – IV ("MCMI-IV"), and the Rotter Incomplete Sentence Blank over a period of seven hours. (*Id.*, at p. 2:4-10.) The Motion does not specify the date and time of the examination, although Defendant's meet and confer correspondence indicates that Dr. Greene is available on July 10, 2026 at 10:00 a.m., and Defendant submits evidence that the parties have recently agreed to conduct the examination at that date and time. (Hatcher Decl., ¶3, Exh. A; Hatcher Decl. ISO Reply, ¶2, Exh. A.)

Defendant contends that because Plaintiff alleges that Belong Home's conduct and omissions caused her psychological harm, she has placed her mental condition in controversy. This is supported by Plaintiff's allegations of interference with her ability to function at home, psychological harm, and severe emotional distress. (See Complaint, ¶¶ 21-15, 47, 92.) Good cause therefore exists to compel the examination.

The motion is GRANTED. Plaintiff is ordered to attend the July 10, 2026, 10:00 a.m., IME with Dr. Greene at 634 North Santa Cruz Avenue, Suite 210, Los Gatos, California 95030, or such other date and time as mutually agreed to by the parties.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

25-CIV-02273 MIRAY YARASIR VS. DOUBLE AA CORPORATION, ET AL
LINE 5

MIRAY YARASIR
DOUBLE AA CORPORATION

ROBERT F BUZZARD
VASTI STEPHANY
MONTIEL

DEFENDANT DOUBLE AA CORPORATION'S DEMURRER TO PLAINTIFFS FIRST
AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Double AA Corporation's Demurrer to Plaintiff Miray Yarasir's First Amended Complaint is SUSTAINED IN PART and OVERRULED IN PART.

Defendant Double AA Corporation ("Double AA") demurs to each cause of action asserted against it in the First Amended Complaint ("FAC"), both generally and specially for uncertainty. The general basis of the FAC is a February 12, 2025 incident in which Plaintiff Miray Yarasir was allegedly attacked and beaten by Defendant Hyiat Aish while working on premises controlled by Yarasir's employer, Double AA, while two other employees watched and failed to intervene or summon law enforcement. (Oct. 22, 2025 First Amended Complaint ("FAC"), ¶¶ 3, 7, 9.)

A. 2nd & 6th Causes of Action: Negligence & Premises Liability

The second cause of action is for negligence, and Double AA's liability is based on its "negligent allowance of [Aish] on the Premises despite knowledge of her anger and dangerous propensities, and the failure of its employees Anna Abushi and Ianho XXXXXX to intervene or call the police." (FAC, ¶ 18.) The sixth cause of action is for premises liability, which is merely a species of negligence, and is based on the same allegations. (*Id.*, at ¶ 34.)

Double AA first contends that the fact that the count sometimes refers to "Defendants" collectively and that the FAC does not "not indicate the acts or omissions which are said to have been negligently performed by Double AA." (Dec. 15, 2025 Memorandum of Points & Authorities, p. 9, ll. 19–20.) The quoted allegation from the eighteenth paragraph of the FAC shows this contention is without merit. The FAC alleges Double AA is (1) liable for failing to exclude Aish from the premises and (2) vicariously liable for the failure of its employees to render aid. If either theory of liability is adequately alleged, then the demurrer to this cause of action must be overruled.

The latter theory is the same as that at issue in *Morris v. De La Torre* (2005) 36 Cal.4th 260 (*Morris*). There, the Supreme Court held that a business proprietor has a special relationship with
